

April 13, 2026
Dept. 9
Probate Tentative Rulings

2.	26PR0046	IN THE MATTER OF THE DANIEL E. WILCOXEN EIGHTH RESTATED REVOCABLE TRUST
Confirming Trust Assets		

Decedent (“Settlor”) established the Daniel E. Wilcoxen Eighth Restated Revocable Trust (“Trust”) on November 5, 2024. Petition, Exhibit A. Settlor died on September 14, 2025, and Petitioner became trustee pursuant to the terms of the Trust, as well as Executor of decedent’s Will.

Several of decedent’s assets remained in his individual name as sole owner after execution of the Trust, including three real properties (Petition, Exhibits C, D, E) and four financial accounts.

Deposition Subpoenas for Production of Medical and Prescription Records

Two of the financial accounts (Wells Fargo, Petition Exhibits F, G H) designate a prior version of the Trust (The Daniel E. Wilcoxen Fifth Restated Revocable Trust, see Petition Exhibit I) as the sole beneficiary of those accounts. The individual beneficiaries of the Fifth and Eighth versions of the Trust are the same.

The third financial account (Petition, Exhibit J) is held in the name of the decedent.

Probate Code § 850 permits a trustee who has a claim to property, the title to or possession of which is held by another, to file a petition requesting that the court make an order pursuant to Probate Code § 856 authorizing and directing the person having title to or possession of real property to execute a conveyance or transfer to a person entitled thereto, or granting other appropriate relief. Probate Code § 851 requires the Petitioner to serve notice of the hearing and a copy of the Petition at least 30 days prior to the hearing to each person claiming an interest in or having title to or possession of the property. When the matter concerns a decedent estate, notice shall also be given to any heir or devisee whose interest may be affected by the Petition in accordance with Probate Code § 1200.

Probate Code § 857 provides that in the event that the court issues such an Order:

(a) The order is prima facie evidence of the correctness of the proceedings and of the authority of the personal representative or other fiduciary or other person to make the conveyance or transfer.

(b) After entry of an order that the personal representative, other fiduciary, or other person execute a conveyance or transfer, the person entitled thereunder has the right to the possession of the property, and the right to hold the property, according to the terms of the order as if the property had been conveyed or transferred in accordance with the terms of the order.

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Notice of the hearing and a copy of the Petition were mailed at least 30 days prior to the hearing, to each person claiming an interest in or having title to or possession of the property, as well as any heir or devisee whose interest may be affected by the Petition. The notice and Petition were mailed and filed on March 2, 2026. No objection has been filed to the Petition.

Petitioner references several indicators of decedent's intention that these assets be held by the Trust. As to the financial accounts that designate a prior version of the Trust as a beneficiary, Petitioner asserts that decedent's intent is manifested by naming a prior version of the same Trust and that he simply neglected to update the beneficiary information as he executed revisions to the Trust. Second, Schedule A of the Trust lists each of these assets as Trust property, even though their ownership was not updated to reflect this intention. Third, decedent's pour-over Will (Petition, Exhibit K) was executed on the same day as the current (eighth) version of the Trust, expresses the intention that "all my property, both personal and real" be transferred to the "Daniel E. Wilcoxen Eighth Restated Revocable Trust". Finally, the verified Petition declares that Petitioner has discussed decedent's intentions with decedent's estate attorney, who confirms that it was decedent's intention that all of his real and personal property be transferred to the Daniel E. Wilcoxen Eighth Restated Revocable Trust, and was not intended to remain in his individual name or be transferred to any prior version of the Trust.

Pursuant to Probate Code §850 and Estate of Heggstad (1993) 16 Cal.App. 4th 943, 947-950, the Court finds sufficient evidence that decedent intended the above-mentioned assets be part of the Trust.

TENTATIVE RULING #2: ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).